

LEARNER GUIDE

Unit Standard Title: DEMONSTRATE KNOWLEDGE OF THE
FIREARMS CONTROL ACT 2000 (ACT NO.60
OF 2000

Unit Standard No: 117705

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UNIT STANDARD 117705: Demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000) applicable to possessing a firearm.



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LEARNING PROGRAM GUIDE

1. INTRODUCTION

You are congratulated on your decision to enroll for this program. It is this training college belief that you have made an excellent choice. We wish you the very best of success in your studies.

This learning program is part of a complete qualification. For more details concerning the complete qualification please contact the facilitator of the service provider or alternatively the office of SASSETA.

2. PURPOSE OF THIS LEARNING PROGRAM

This unit standard is for persons who need to demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000), herein after the Act that is applicable to legally possess a firearm. Persons credited with this unit standard are able to:

A person credited with this unit standard will be able to:

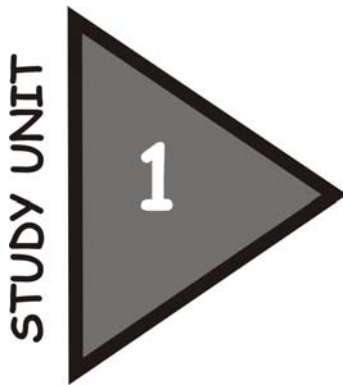
1. Demonstrate understanding of the statutory duties and obligations of firearm ownership as contained in the Act;
2. Demonstrate understanding of the statutory prescriptions applicable to the possession, handling, carrying, storage and use of firearms as prescribed by the Act; and
3. Demonstrate understanding of the statutory prescriptions applicable to the possession and storage of ammunition as prescribed by the Act.

3. ASSESSMENTS

In order to assess whether a learner can actually demonstrate the desired outcomes, assessment criteria are included in the unit standard. Each outcome has its own set of assessment criteria. The assessment criteria describe the evidence that is needed that will show that the learner has demonstrated the outcome correctly. Kindly refer to the unit standard attached hereto for the assessment criteria of the unit standard “**117705: Demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000) applicable to possessing a firearm.**”

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FIREARMS CONTROL ACT

LEARNING OUTCOMES

On completion of this module the student will....

1. Interpret the meanings of relevant definitions as contained in the Firearms Control Act 60 of 2000 correctly by relating them to the various sections of the act.
2. Understand the legislative requirements of Section 84 of the Firearms Control Act of 2000 with regards to the carrying of firearms in public places and demonstrate the correct application thereof.
3. Know the two circumstances under which the firearms Registrar will consider the issuing of a firearm licence, and understand the requirements, conditions and provisions that accompany such authorization according to Section 13 and Section 20 of the Firearms Control Act 60 of 2000.
4. Understand under which conditions a licensed owner may permit any other person to use the firearm that he is licensed for according to Section 22 of the Firearms Control Act 60 of 2000.
5. Understand that a firearm licence is subject to renewal and know the applicable procedures and conditions that must be complied with before such renewal will be granted, according to Section 24 of the Firearms Control Act 60 of 2000.
6. Demonstrate an understanding of the periods for which the different categories of firearm licences will be valid, according to Section 27 of the Firearms Control Act 60 of 2000.
7. Explain the requirements that must be met with regard to the change of residential address according to Section 27 of the Firearms Control Act 60 of 2000.

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8. Explain all the requirements that must be met with regards to defaced, lost or stolen licences, permits and authorisations according to Section 29 of the Firearms Control Act 60 of 2000.
9. Explain all the requirements that must be met with regards to the prohibition and restrictions that are placed on the possession of ammunition according to Section 90 and Section 91 of the Firearms Control Act 60 of 2000.
10. Understand that the Firearms Control Act makes provision for the requirements that must be followed by transporters of arms and ammunition in accordance with regulation 69 of the Firearms Control Regulations as contained in the Firearms Control Act 60 of 2000, and that these requirements are to be adopted as best practice for the transportation of firearms under any circumstances by firearm handlers.

FIREARMS CONTROL ACT: Act 60 of 2000**1. Definitions**

In this Act, unless the context indicates otherwise:

NO	WORD/PHRASE	DESCRIPTION
1.	Accredit	Means accredit as contemplated in section 8;
2.	Airgun	Refers to any device manufactured to discharge a bullet or any other projectile of a calibre of less than 5.6mm (.22 calibre) by means of compressed gas and not by means of burning propellant.
3.	Ammunition	Refers to a primer or complete cartridge.
4.	Antique firearm	Refers to any muzzle loading firearm manufactured before 1 January 1900 or any replica of such a firearm.
5.	Appeal Board	Refers to the Appeal Board established by Section 128.
6.	Cartridge	Refers to a complete object consisting of a cartridge case, primer, propellant and bullet.
7.	Competency certificate	Refers to a competency certificate contemplated in Chapter 5.
8.	Dealer	Any person who is licensed in terms of this Act to trade in firearms and ammunition.
9.	Dedicated hunter	A person who actively participates in hunting activities and who is a member of an accredited hunting association.
10.	Dedicated sports person	A person who actively participates in sports-shooting and who is a member of an accredited sports-shooting organisation;
11.	Designated firearms officer	Refers to a police official contemplated in Section 124(2)(h).

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NO	WORD/PHRASE	DESCRIPTION
12.	Firearm	Refers to any: • device manufactured or designed to propel a bullet or projectile through a barrel or cylinder by means of burning propellant at a muzzle energy exceeding 8 joules (6 ft-lbs). • device manufactured or designed to discharge rim-fire, centre-fire or pin-fire ammunition. • device which is not at the time capable of discharging any bullet or projectile but which can be readily altered to be a firearm within the meaning of paragraph (a) or (b). • device manufactured to discharge a bullet or any other projectile of .22 calibre or higher at a muzzle energy of more than 8 joules (6 ft-lbs), by means of compressed gas and not by means of burning propellant or • barrel, frame or receiver of a device referred to in paragraphs (a), (b), (c) or (d), but does not include any device contemplated in Section 5.
13.	Fully automatic	Capable of discharging more than one shot with a single depression of the trigger.
14.	Gunsmith	Any person who performs work contemplated in Section 59, but who does not manufacture firearms.
15.	Handgun	Refers to a pistol or revolver which can be held in and discharged with one hand.
16.	Imitation firearm	Refers to anything that has the appearance of a firearm but is not capable of operating as such and cannot by superficial examination be identified as an imitation.
17.	Juristic person	Includes a partnership and any other association of persons.

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NO	WORD/PHRASE	DESCRIPTION
18.	Load	Includes reload, and “loading” has a corresponding meaning.
19.	Minister	The Minister of Safety and Security.
20.	<i>National Commissioner</i>	The National Commissioner of the South African Police Service, appointed in terms of Section 207(1) of the Constitution.
21.	<i>Occasional hunter</i>	Any person who, from time to time, participates in hunting activities but who is not a member of an accredited hunting association.
22.	<i>Occasional sports person</i>	Any person who, from time to time, participates in sports-shooting but who is not a member of an accredited sports-shooting organization.
23.	<i>Police official</i>	Refers to: • a member of the South African Police Service as defined in Section 1 of the South African Police Service Act, 1995 (Act No. 68 of 1995), and a member of any municipal police service established in terms of that Act. • A person designated by the Minister as a police official under Section 142. • A member of the South African National Defence Force deployed in co-operation with the South African Police Service.
24.	Prescribed	Means prescribed by regulation.
25.	Previous Act	Refers to the Arms and Ammunition Act, 1969 (Act No. 75 of 1969).
26.	Private collector	A person who collects firearms or ammunition; who is a member of an accredited collector's association and who is not a public collector.

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NO	WORD/PHRASE	DESCRIPTION
27.	Public collector	A person who collects firearms or ammunition for display to the public and is accredited as such.
28.	Registrar	The person referred to in Section 123.
29.	Regulation	Refers to a regulation made under Section 145.
30.	Restricted firearm	Refers to any firearm contemplated in Section 14(1).
31.	Security company	Refers to a person who: - renders a security service as defined in Section 1 of the Security Officers Act, 1987 (Act No. 92 of 1987) or - is accredited as a provider of security services for its own business.
32.	Security officer	Any person who is employed by a security company.
33.	Semi-automatic	Implies self-loading but not capable of discharging more than one shot with a single depression of the trigger.
34.	This Act	Includes any regulation.
35.	Transfer	Includes selling, letting, donating, lending or otherwise parting with possession.

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2. Purpose of Act

The purpose of this Act is to:

- Enhance the constitutional rights to life and bodily integrity;
- Prevent the proliferation of illegally possessed firearms by providing for the removal of those firearms from society and by improving control over legally possessed firearms, to prevent crime involving the use of firearms.
- Enable the State to remove illegally possessed firearms from society; to control the supply, possession, safe storage, transfer and use of firearms, and to detect and punish the negligent or criminal use of firearms.
- Establish a comprehensive and effective system of firearm control and management.
- Ensure the efficient monitoring and enforcement of legislation pertaining to the control of firearms.

PROHIBITIONS

3. General prohibition in respect of firearms

Section 3. No person may possess a firearm unless he or she holds a license, permit or authorisation issued in terms of this Act for that firearm.

4. Prohibited firearms

Section 4. (1) The following firearms and devices are prohibited firearms and may not be possessed or licensed in terms of this Act, except as provided for in Sections 17, 18(5), 19 and 20(1) (b):

- (a) Any fully automatic firearm.
- (b) Any gun, cannon, recoilless gun, mortar, light mortar or launcher manufactured to fire a rocket, grenade, self-propelled grenade and bomb or explosive device.
- (c) Any frame, body or barrel of such a fully automatic firearm, gun, cannon, recoilless gun, mortar, light mortar or launcher.
- (d) Any projectile or rocket manufactured to be discharged from a cannon, recoilless gun or mortar or rocket launcher.
- (e) Any imitation of any device contemplated in paragraph (a), (b), (c), or (d).
- (f) Any firearm that:
 - i. The mechanism of which has been altered so as to enable the discharging of more than one shot with a single depression of the trigger.
 - ii. (ii) The calibre of which has been altered without the written permission of the Registrar.

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- (iii) The barrel length of which has been altered without the written permission of the Registrar.
 - (jjj) The serial number or any other identifying mark of which has been changed or removed without the written permission of the registrar.
-

5. Devices not regarded as firearms for purposes of this Act

Section 5. (1) For purposes of this Act, the following devices are not regarded as firearms:

- a) Any explosive powered tool manufactured specifically for the use in industrial application, including line-throwing guns and impex-type building pistols.
 - b) Any explosive powered tool manufactured to split rock or concrete by means of discharging an explosive cartridge.
 - c) Any industrial tool manufactured for the use in the mining and steel industry to remove refractory material.
 - d) Any captive bolt gun manufactured for use in an abattoir in the humane killing of animals.
 - e) An antique firearm.
 - f) An air gun.
 - g) A tranquilizer firearm.
 - h) A paintball gun.
 - i) A flare gun.
 - j) A deactivated firearm.
 - k) Any other device, which the Minister may, by notice in the Gazette, exempt.
-

6. Competency certificates, licenses, permits and authorisations

Section 6. (1) The Registrar may issue any competency certificate, license, permit or authorisation contemplated in this Act:

- a) On receipt of an application completed in the prescribed form, including a full set of fingerprints of the applicant.
- b) If the applicant complies with all the applicable requirements of this Act.

Section 6. (2) Subject to Section 7, no license may be issued to a person who is not in possession of the relevant competency certificate.

Section 6. (3) Every application for a competency certificate, license, permit or authorisation must be accompanied by such information as may be prescribed.

COMPETENCY CERTIFICATES

7. Application for competency certificate

Section 9 (1) An application for a competency certificate to possess a firearm, to trade in firearms, to manufacture firearms or to carry on business as a gunsmith must be delivered to the Designated Firearms Officer responsible for the area in which the applicant ordinarily resides or in which the applicants' business is or will be situated, as the case may be.

Section 9 (2) Where a person has not previously obtained a competency certificate, a competency certificate may only be issued to such person if he or she:

- (a) is 21 years or older on the day the application is received by the Designated Firearms Officer;
- (b) is a South African citizen or a holder of a permanent South African residence permit;
- (c) is a fit and proper person to possess a firearm, to trade in firearms, to manufacture firearms or to conduct business as a gunsmith, as the case may be;
- (d) is of stable mental condition and is not inclined to violence;
- (e) is not dependent on any substance which has an intoxicating or narcotic effect;
- (f) has not been convicted of any offence under or in terms of this Act or the previous Act and sentenced to a period of imprisonment without the option of a fine;
- (g) has not been convicted, whether in or outside South Africa, of an offence involving the unlawful use or handling of a firearm by him or her or another participant to the offence, whether committed in or outside South Africa;
- (h) has not been convicted, whether in or outside South Africa, of an offence involving:
 - i. violence or sexual abuse, whether committed in or outside South Africa, and sentenced to a period of imprisonment without the option of a fine; or
 - ii. physical or sexual abuse which occurred within a domestic relationship as defined in Section 1 of the Domestic Violence Act, 1998 (Act No. 116 of 1998), whether committed in or outside South Africa;
 - iii. has not been convicted of fraud in relation to, or supplying false information for the purposes of obtaining a competency certificate, license, permit or authorisation in terms of this Act or the previous Act.
 - iv. has not been convicted, whether in or outside South Africa, of an offence.
 - v. involving the abuse of alcohol or drugs and sentenced to a period of imprisonment without the option of a fine.

- vi. has not been convicted, whether in or outside South Africa, of an offence
- vii. involving dealing in drugs and sentenced to a period of imprisonment without the option of a fine;
- viii. (l) has not been convicted of an offence in terms of the Domestic Violence Act, 1998 (Act No. 116 of 1998), and sentenced to a period of imprisonment without the option of a fine.
- ix. (m) has not been convicted of an offence involving the negligent handling of a
- x. firearm.
- xi. (n) has not been convicted of an offence in terms of the Explosives Act, 1956 (Act No. 26 of 1956), and sentenced to a period of imprisonment without the option of a fine.
- xii. (o) has not been convicted, whether inside or outside South Africa, of an offence involving sabotage, terrorism, public violence, arson, intimidation, rape, kidnapping or child theft.
- xiii. (p) has not become or been declared unfit to possess a firearm in terms of this Act or the previous Act.
- xiv. (q) has successfully completed the prescribed test on knowledge of this Act.
- xv. (r) has successfully completed the prescribed training and practical tests
- xvi. regarding the safe and efficient handling of a firearm.
- xvii. (s) has, where applicable, successfully completed the prescribed training and
- xviii. practical tests for firearms dealers, manufacturers, gunsmiths, security officers or other persons who use firearms in the course of their business.

Section 9 (3) Any offence referred to in Subsection (2) includes any conspiracy, incitement or attempt to commit such an offence and means an offence in respect of which:

- (a) a court has not made a determination that the person is not unfit to possess a firearm despite the conviction; and
- (b) the sentence has been complied with less than five years before the application for the Designated Firearms Officer received a competency certificate.

Section 9 (4) The disqualification contemplated in Subsection (2)(p) ends upon the expiry of a period of five years calculated from the date on which the person became or was declared unfit, or the expiry of the period for which the declaration is valid, whichever occurs first.

Section 9 (5) (a) Despite Subsection (2)(a), the Registrar may allow a person under the age of 21 years to apply for a competency certificate if there are compelling reasons which require the person to obtain a competency certificate or license to possess a firearm.

Section 9 (5) (b) Compelling reasons contemplated in paragraph (a) may include the fact that the applicant conducts a business, is gainfully employed, a dedicated hunter, a dedicated sports person or a private collector.

Section 9 (6) (a) Where a person has previously obtained a competency certificate, a further competency certificate may only be issued to such a person if he or she satisfies the requirements as prescribed.

Section 9 (6) (b) The requirements contemplated in paragraph (a) may not be more onerous than those applicable to a person who has not previously obtained a competency.

8. Competency certificate

Section 10. (1) A competency certificate must specify:

- (a) Whether it relates to competency to:
 - (i) Possess a firearm.
 - (ii) Trade in firearms.
 - (iii) Manufacture firearms.
 - (iv) Conduct business as a gunsmith.
- (b) All the relevant tests successfully completed by the holder.

Section 10 (2) A competency certificate lapses after five years from its date of issue.

9. License to possess a firearm for self-defence

Section 13. (1) A firearm in respect of which a license may be issued in terms of this section is any:

- (a) shotgun which is not fully or semi-automatic.
- (b) a handgun which is not fully automatic.

Section 13 (2) The Registrar may issue a license under this section to any natural person who:

- (a) requires a firearm for self-defence.
- (b) can not reasonably satisfy that need by means other than the possession of a firearm.

Section 13 (3) No person may hold more than one license issued in terms of this section.

Section 13 (4) A firearm in respect of which a license has been issued in terms of this section may be used where it is safe to use the firearm and for a lawful purpose.

10. License to possess a firearm for occasional hunting and sports shooting

Section 15. (1) A firearm in respect of which a license may be issued in terms of this section is any:

- (a) handgun which is not fully automatic.
- (b) rifle or shotgun which is not fully or semi-automatic.
- (c) barrel, frame or receiver of a handgun, rifle or shotgun contemplated in paragraph (a) or (b) and which is not a restricted firearm.

Section 15. (2) The Registrar may issue a license in terms of this section to any natural person who is an occasional hunter or occasional sports person.

Section 15. (3) (a) Subject to paragraphs (b), (c) and (d), no person may hold more than four licenses issued in terms of this section.

- (b) If a person holds a license issued in terms of Section 13, he or she may only hold three licenses issued in terms of this section.
- (c) A person may not hold more than one license in respect of a handgun contemplated in Subsection (1) (a).
- (d) If a person contemplated in paragraph (a) holds any additional licenses contemplated in Section 12 in respect of a firearm contemplated in this section and Section 13, the number of licenses which that person may hold must be reduced by the number of such additional licenses held.

Section 15. (4) A firearm in respect of which a license has been issued in terms of this section may only be used where it is safe to use the firearm and for a lawful purpose.

11. License to possess a firearm for dedicated hunting and sports-shooting

Section 16. (1) A firearm in respect of which a license may be issued in terms of this section is any:

- (a) handgun which is not fully automatic.
- (b) rifle or shotgun which is not fully automatic.
- (c) semi-automatic shotgun manufactured to fire no more than five shots in succession without having to be reloaded.
- (d) barrel, frame or receiver of a handgun, rifle or shotgun contemplated in paragraph (a), (b) or (c).

Section 16. (2) The Registrar may issue a license in terms of this section to any natural person who is a dedicated hunter or sports person if the application is accompanied by a sworn statement or solemn declaration from the chairperson of an accredited hunting association or sport-shooting organisation, or someone delegated in writing by him or her, stating that the applicant is a registered member of that association.

Section 16. (3) A firearm in respect of which a license has been issued in terms of this section may be used where it is safe to use the firearm and for a lawful purpose.

Section 16. (4) Every accredited hunting association and sport-shooting organisation must:

- (a) Keep a register which contains such information as may be prescribed.
- (b) Submit an annual report to the Registrar, which contains such information as may be prescribed.

12. License to possess a firearm in a private collection

Section 17. (1) (a) A firearm, which may be possessed in a private collection, is any firearm approved for collection by an accredited collectors association.

- (b) Despite Section 4, such a prohibited firearm as may be prescribed may be licensed under this section.

Section 17. (2) The Registrar may issue a license in terms of this section to a private collector if the application is accompanied by a sworn statement or solemn declaration from the chairperson of an accredited collectors association, or someone delegated in writing by him or her, stating that the applicant is a registered member of that association.

Section 17. (3) The holder of a license issued in terms of this section:

- (a) Must store the firearm in a place specified in the license.
- (b) May only display the firearm in accordance with such safety measures as may be prescribed.

Section 17. (4) A firearm in respect of which a license has been issued in terms of this section may be used where it is safe to use the firearm and for a lawful purpose.

13. Permit to possess ammunition in a private collection

Section 18. (1) Ammunition, which may be possessed in a private collection, is any ammunition approved for collection by an accredited collectors association.

Section 18 (2) (a) The Registrar may, subject to such regulations as may be prescribed, issue a permit in terms of this section to a private collector if the application is accompanied by a sworn statement or solemn declaration from the chairperson of an accredited collectors association, or someone delegated in writing by him or her, stating that the applicant is a registered member of that association.

(b) A collector contemplated in paragraph (a) may not possess more than 200 rounds of ammunition of any particular calibre unless the Registrar approves the possession of a higher number in writing.

Section 18. (3) The holder of a permit issued in terms of this section may not discharge any ammunition in his or her collection.

Section 18. (4) The holder of a permit issued in terms of this section:

- (a) Must store the ammunition in the place specified in the permit.
- (b) May only display the ammunition in accordance with such safety measures as may be prescribed.

Section 18. (5) Despite Section 4, the holder of a permit issued in terms of this section may possess projectiles and cartridges manufactured to be discharged by prohibited firearms if the propellant, high explosive and primer of the projectiles and cartridges have been removed or deactivated.

14. License to possess a firearm and permit to possess ammunition in a public collection

Section 19. (1) The Registrar may issue a license or permit to possess a firearm in a public collection or both to a public collector.

Section 19. (2) Despite Section 4:

- (a) Such prohibited firearms as prescribed may be licensed under this section.
- (b) The holder of a permit issued in terms of this section may possess projectiles and cartridges manufactured to be discharged by prohibited firearms if the propellant, high explosive and primer of the projectiles and cartridges have been removed or deactivated.

Section 19. (3) The holder of a permit contemplated in Subsection (1) may not possess more than 200 rounds of ammunition of any particular calibre unless the

Registrar approves the possession of a higher number in writing.

Section 19. (4) A firearm and ammunition in respect of which a license has been issued in terms of this section may only be displayed:

- (a) In an accredited museum.
- (b) In accordance with such safety measures as may be prescribed.

Section 19. (5) A firearm in respect of which a license has been issued in terms of this section may only be used on an accredited shooting range in accordance with the rules of that shooting range and in accordance with such conditions as the Registrar may impose.

Section 19. (6) The holder of a permit issued in terms of this section may not discharge any ammunition in his or her collection.

15. License to possess a firearm for business purposes

Section 20. (1) (A) A firearm in respect of which a license may be issued in terms of this section is any firearm other than a prohibited firearm.

Section 20 (1) (b) Despite paragraph (a), a license in respect of a prohibited firearm may be issued to a person contemplated in Subsection (2) (c) but such person may only provide the prohibited firearm for use in theatrical, film or television productions and then only if the prior written approval of the Registrar has been obtained and on such conditions as the Registrar may impose.

Section 20 (2) The Registrar may issue a license in terms of this section to:

- (a) A security company.
- (b) A person who is accredited to provide training in the use of firearms.
- (c) A person who is accredited to provide firearms for use in theatrical, film or television productions.
- (d) A person who is accredited as a game hunter.
- (e) A person who is accredited to conduct business in hunting.
- (f) Any person who is accredited to use firearms for other business purposes as the Registrar may determine.

Section 20 (3) A license issued in terms of this section must specify the business purpose in respect of which it is issued.

Section 20 (4) A firearm in respect of which a license was issued in terms of this section may only be used as specified in the license.

Section 20 (5) (a) The holder of a license issued in terms of this section may only provide the firearm for use by another person subject to such conditions as may be prescribed.

Section 20 (5) (b) A security company which holds a license to possess a firearm for business use may only provide the firearm to a security officer in its service who holds a competency certificate.

Section 20 (6) Every holder of a license issued in terms of this section must:

- (a) Keep a register of all firearms in its possession containing such information as may be prescribed.
- (b) Store and transport the firearms as prescribed.

Section 20 (7) The holder of a license issued in terms of this Act must, at the request of a police official, produce for inspection:

- (a) Any firearm and ammunition in its possession or under its control.
- (b) Every license issued in terms of this section.

16. Temporary authorisation to possess a firearm

Section 21 (1) The Registrar may issue a temporary authorisation to possess a firearm to any person, including a non-citizen:

- (a) For such a period as the Registrar may determine.
- (b) Subject to conditions as prescribed and imposed by the Registrar.

Section 21 (2) The Registrar may at any time withdraw an authorisation if any condition contemplated in Subsection (1) (b) is not complied with.

Section 21 (3) The Office of the Central Firearms Register must keep a record containing information as prescribed in respect of all authorisations issued in terms of this section.

Section 21 (4) The Registrar must submit an annual report to the Minister containing information as prescribed in respect of all authorisations issued in terms of this section.

Section 21 (5) A firearm in respect of which an authorisation has been issued in terms of this section may be used only:

- (a) if the Registrar by endorsement on the authorisation permits such use.

And

- (b) In accordance with conditions as prescribed and imposed by the Registrar.
- (6) A firearm in respect of which an authorisation has been issued in terms of this section may be disposed of only with the written consent of the Registrar and subject to conditions as he or she may impose.

17. The holder of a license may allow another person to use the firearm

Section 22 Despite anything to the contrary in the Act but subject to Section 120(5), any person who is at least 21 years of age and the holder of a license to possess a firearm issued in terms of this Act may allow any other person to use that firearm while under his or her immediate supervision where it is safe to use the firearm and for a lawful purpose.

18. Identification marks on firearms

Section 23. (1) No firearm license may be issued unless the firearm bears the manufacturers' serial number or any other mark by which the firearm can be identified.

Section 23 (2) The identification number must be stamped and the mark affixed in the prescribed manner on the barrel, frame or receiver of the firearm.

Section 23 (3) Despite Subsections (1) and (2), the Registrar may, on good cause shown by the applicant and subject to such conditions as the Registrar may impose, issue a license in respect of a firearm which does not comply with the provisions of those subsections.

Section 23 (4) The Registrar may direct that any firearm in respect of which an application for a license has been made, be marked with such additional identification marks as he or she may determine.

Section 23 (5) No person may erase, alter or in any other manner tamper with the manufacturer's serial number or any other identification mark on a firearm with the intention of changing the identity of the firearm.

Section 23 (6) A person who is in possession of a firearm of which the manufacturers' serial number or other identification mark has been erased, altered or in any other manner tampered with or has become illegible, must forthwith notify the Registrar of such a fact.

Section 23 (7) The Registrar may direct in writing that such a firearm be marked with an identification mark as he or she may determine.

19. Renewal of a firearm license

Section 24 (1) The holder of a license issued in terms of this Chapter who wishes to renew the license must at least 90 days before the date of expiry of the license apply to the Registrar for its renewal.

Section 24 (2) The application must be:

- (a) Accompanied by information as prescribed.
- (b) Delivered to the Designated Firearms Officer responsible for the area in which the applicant ordinarily resides or in which the applicants' business is, as the case may be.

Section 24 (3) No application for the renewal of a license may be granted unless the applicant shows that he or she has continued to comply with the requirements for the license in terms of this Act.

Section 24 (4) If an application for the renewal of a license has been lodged within the period provided for in Subsection (1), the license remains valid until the application is decided.

20. Notification of change of address

Section 25 (1) The holder of a license, permit or authorisation issued in terms of this Chapter must in writing notify the Registrar of any change in his or her physical or postal address within 30 days of such change occurring.

Section 25 (2) The Registrar must, within 30 days after receiving a notice referred to in Subsection (1), acknowledge receipt of that notice in writing.

21. Notification of change of circumstances

Section 26 (1) The holder of a license, permit or authorisation issued in terms of this Chapter must notify the Registrar in writing within 30 days if there is any change with regard to any information which was submitted in respect of the application for the issue of that license, permit or authorisation.

Section 26 (2) The Registrar must within 30 days after receiving a notice referred to in Subsection (1) acknowledge receipt of that notice in writing.

22. Period of validity of license or permit

Section 27 A license or permit mentioned in Column 2 of the Table below remains valid for the period mentioned in Column 3 of the Table.

SECTION NUMBER	TYPE OF LICENCE OR PERMIT	PERIOD OF VALIDITY
13	License to possess a firearm for self-defence	Five years
14	License to possess a restricted firearm for self-defence	Two years
15	License to possess a firearm for occasional hunting and sports-shooting	Ten years
16	License to possess a firearm for dedicated hunting and dedicated sports-shooting	Ten years
17	License to possess a firearm in a private collection	Ten years
18	Permit to possess a ammunition in a private collection	Ten years
19	License to possess a firearm and permit to possess ammunition in a public collection	Ten years
20	License to possess a firearm for business purposes for example Business in hunting	Five years
21	License to possess a firearm for business purposes for example Business other than in hunting	Two years

23. Termination of a firearm license

Section 28 (1) A license issued in terms of this Chapter terminates:

- Upon the expiry of the relevant period contemplated in Section 27, unless renewed in terms of Section 24.
- If surrendered by the holder of the license to the Registrar.
- If the holder of the license becomes or is declared unfit to possess a firearm in terms of Section 102 or 103.
- If it is cancelled in terms of this Act.

Section 28 (2) The Registrar may, by notice in writing, cancel a license issued in terms of this Chapter if the holder of the license:

- No longer qualifies to hold the license.
- Has contravened or failed to comply with any provision of this Act or any condition specified in the license.

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Section 28 (3) A notice contemplated in Subsection (2) may only be issued if the Registrar has:

- (a) Given the holder of the license 30 days notice in writing to submit written representations as to why the license should not be cancelled.
- (b) Duly considered any representations received and all the facts pertaining to the matter.

Section 28 (4) (a) If a notice contemplated in Subsection (2) is issued, the former holder of the license must dispose of the firearm in question through a dealer or in such a manner as the Registrar may determine.

(b) The disposal must take place within 60 days after receipt of the notice.

Section 28 (5) If the firearm is not disposed of within 60 days, it must be forfeited to the State and the former holder of the license must surrender it immediately at such a place and in such a manner as the Registrar may determine.

Section 28 (6) Any period contemplated in this section may be extended by the Registrar on good cause shown.

24. Defaced, lost or stolen licenses, permits and authorisations

Section 29 (1) If a license, permit or authorisation issued in terms of this Chapter is lost or stolen, the holder of the license, permit or authorisation must inform the Registrar of such a loss or theft within 24 hours of the discovery of the loss or theft.

Section 29 (2) If a license, permit or authorisation issued in terms of this Chapter is defaced, lost or stolen, the holder of the license, permit or authorisation must within seven days of the discovery of the defacement, loss or theft apply to the Registrar in the prescribed form for a copy of the license, permit or authorisation.

25. Suspension of gunsmiths' license

Section 69. (1) The Registrar may suspend a gunsmiths' license if the Registrar has information in a sworn statement or on solemn declaration that the gunsmith has committed an offence in terms of this Act for which a sentence of imprisonment for a period of five years or more may be imposed.

Section 69 (2) A license may be suspended for not more than seven days without affording the holder of the license a hearing.

Section 69 (3) A suspension may endure for a period longer than seven days if the:

- (a) holder has been afforded an opportunity to make written representations to the Registrar,
- (b) registrar has given due consideration to the representations and
- (c) registrar deems it necessary in order to achieve the objects of this Act. and
- (d) suspension has been confirmed by a court.

Section 69 (4) A gunsmith may not conduct business as a gunsmith for such period as the license is suspended.

26. Storage and transportation of firearms and ammunition

Section 83. Firearms and ammunition must be stored and transported in the prescribed manner.

27. Carrying of a firearm in a public place

Section 84 (1) No person may carry a firearm in a public place unless the firearm is carried:

- (a) In the case of a handgun,
 - i) In a holster or similar holder designed, manufactured or adapted for the carrying of a handgun and attached to his or her person.
 - ii) In a rucksack or similar holder.
- (b) In the case of any other firearm, in a holder designed, manufactured or adapted for the carrying of the firearm.

Section 84 (2) A firearm contemplated in Subsection (1) must be completely covered and the person carrying the firearm must be able to exercise effective control over such a firearm.

28. Conditions imposed on the bearer of a firearm

Section 85 (1) The Minister may prescribe conditions, which the Registrar may impose on the holder of a permit issued in terms of Section 86.

Section 85 (2) The conditions, which the Registrar imposes, must be specified in the permit.

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29. A firearm bearers' permit

Section 86 (1) No person may transport any firearm or ammunition for reward without being in possession of a firearm bearers' permit issued in terms of this Act.

Section 86 (2) a firearm bearers' permit may be issued to a person who is a fit and proper person to conduct business as a firearm bearer.

Section 86 (3) The Registrar may issue a firearm bearers' permit:

- (a) On receipt of an application completed on the prescribed form and containing the prescribed information.
- (b) For such a period as the Registrar may determine.

30. Duties of the holder of a permit

Section 87 (1) The holder of a permit issued in terms of this Chapter, must at the request of any police official, produce for inspection:

- (a) Any firearms or ammunition in his or her possession or under his or her control.
- (b) His or her permit.
- (c) Any register or electronic data that may be kept by him or her in terms of this Act.

Section 87 (2) The Registrar may direct the holder of a permit issued in terms of this Chapter to keep and maintain registers containing such information as he or she may direct.

Section 87 (3) The holder of a firearm bearers' permit must comply with any conditions imposed under section 85.

31. Cancellation of a firearm bearers' permit

Section 88 (1) The Registrar may, by written notice, cancel a firearm bearers' permit if the permit holder:

- (a) No longer qualifies to hold the permit.
- (b) Has contravened or failed to comply with any provision of this Act or any condition specified in the permit.

Section 88 (2) The former holder of a permit must dispose of his or her cargo of firearms and ammunition in accordance with the directions of the Registrar.

32. Records to be kept

Section 89 The Office of the Central Firearms Register must keep a record of prescribed information in respect of all firearm bearers' permits issued in terms of this Chapter.

33. Prohibition of possession of ammunition

Section 90 No person may possess any ammunition unless he or she:

- (a) holds a license in respect of a firearm capable of discharging that ammunition.
 - (b) holds a permit to possess ammunition.
 - (c) holds a dealers' license, manufacturers' license, gunsmiths' license, import, export or in-transit permit or bearers' permit issued in terms of this Act,
 - (d) is otherwise authorised to do so.
-

34. Restrictions on possession of ammunition

Section 91 (1) The holder of a license to possess a firearm referred to in Chapter 6 may not possess more than 200 cartridges for each firearm in respect of which he or she holds a license.

Section 91 (2) the limitation in Subsection (1) does not apply to:

- (a) A dedicated hunter or sports person who holds a license issued in terms of this Act or any other holder of a license issued in terms of this Act authorised by the Registrar to possess more than 200 cartridges for a firearm in respect of which he or she holds a license on good cause shown.
 - (b) The holder of a license to possess a firearm issued in terms of this Act in respect of ammunition bought and discharged at an accredited shooting range.
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35. Loading or reloading of ammunition

Section 93. (1) Section 45(1) does not apply to the loading of ammunition by the holder of a license to possess a firearm for use in his or her licensed firearm.

Section 93 (2) (a) A holder of a license contemplated in Subsection (1) may not have more than 2 400 primers in his or her possession for each firearm in respect of which he or she holds a license.

- (b) The limitation in paragraph (a) does not apply to a dedicated hunter or sports person who holds a license issued in terms of this Act or any other holder of a license issued in terms of this Act authorised by the Registrar to possess more than 2 400 primers for a firearm in respect of which he or she holds a license on good cause shown.

Section 93 (3) No person may load prohibited ammunition contemplated in Section 92.

36. Prohibition of possession of firearm parts

Section 94 (1) For purposes of this section, “firearm part” means a slide, bolt or breech-block of a firearm.

Section 94 (2) No person may possess any firearm part unless he or she:

- (a) holds a license in respect of a firearm capable of bearing that firearm part;
- (b) holds a dealer’s license, manufacturer’s license, gunsmith’s license, import, export or in-transit permit or transporter’s permit issued in terms of this Act; or
- (c) is otherwise authorized to do so.

Section 94(3) The holder of a dealer’s license, manufacturer’s license, gunsmith’s license, import, export or in-transit permit or transporter’s permit issued in terms of this Act must keep such register of all firearm parts in his or her possession as may be prescribed.

Section 94 (4) (a) The Minister may, by notice in the *Gazette*, prohibit or restrict the acquisition, disposal, possession or use of firearm parts if it is:

- (i) In the interest of public safety; or
 - (ii) Desirable for the maintenance of law and order.
- (b) A notice contemplated in paragraph (a) must be tabled in Parliament at least 14 days before publication thereof if Parliament is then sitting, and if Parliament is not sitting, within seven days after the commencement of the next sitting.
- (c) A notice contemplated in paragraph (a) will be of full force and effect until withdrawn by the Minister or by a resolution of Parliament.

37. Declaration by the Registrar of a person as unfit to possess a firearm

Section 102 (1) The Registrar may declare a person unfit to possess a firearm if, on the grounds of information contained in a statement under oath or affirmation including a statement made by any person called as a witness, it appears that:

- (a) A final protection order has been issued against such a person in terms of the Domestic Violence Act, 1998 (Act No. 116 of 1998).
- (b) That person has expressed the intention to kill or injure himself or herself or any other person by means of a firearm or any other dangerous weapon.
- (c) Because of that persons' mental condition, inclination to violence or dependence on any substance, which has an intoxicating or narcotic effect, the possession of a firearm by that person is not in the interests of that person or of any other person.
- (d) That person has failed to take the prescribed steps for the safekeeping of any firearm.
- (e) That person has provided information required in terms of this Act, which is false or misleading.

Section 102 (2) A declaration under Subsection (1) may only be issued if the Registrar:

- (a) By notice in writing delivered by hand to the person, has called upon the person to appear before the Registrar at a time and place determined therein in order to advance reasons as to why that person should not be declared unfit to possess a firearm.
- (b) Has given that person a reasonable opportunity to advance reasons as to why the declaration should not be issued.
- (c) Has duly considered the matter.
- (d) Is satisfied that the person is unfit as contemplated in Subsection (1).
- (e) Does not rely solely on the same facts relating to a conviction in respect of which a court has made a determination in terms of Section 103(1) or (2) that the person is not unfit to possess a firearm.

Section 102 (3) Any person appearing in pursuance of a notice issued in terms of Subsection (2) (a) is entitled to:

- (a) Be represented by a legal representative.
- (b) Request the Registrar to call, in the manner referred to in Subsection (2)(a), any person who made a statement referred to in Subsection (1), to appear before the Registrar.
- (c) Examine the person who has been called in terms of Subsection (1) or paragraph (b) to appear, or to cause him or her to be so examined by such legal representative.

Section 102 (4) (a) Section 183 of the Criminal Procedure Act, 1977 (Act No. 51 of 1977), applies with the necessary changes to any person called to appear before the Registrar in terms of Subsection (2)(a), including any witness.

- (b) For purposes of paragraph (a) the expression “to a fine not exceeding R300 or to imprisonment for a period not exceeding three months” where it occurs in Section 183(2) of the Criminal Procedure Act, 1977 (Act No. 51 of 1977), must be construed to read as follows:

“to a fine or to imprisonment for a period not exceeding 12 months”.

- (c) Section 181 of the Criminal Procedure Act, 1977 (Act No. 51 of 1977), applies with the necessary changes in respect of any witness whose appearance has been requested as contemplated in Subsection (3) (b).

38. Declaration by court of a person to be unfit to possess a firearm

Section 103. (1) Unless the court determines otherwise, a person becomes unfit to possess a firearm if convicted of:

- (a) The unlawful possession of a firearm or ammunition.
- (b) Any crime or offence involving the unlawful use or handling of a firearm, whether the firearm was used or handled by that person or by another participant in that offence.
- (c) An offence regarding the failure to store firearms or ammunition in accordance with the requirements of this Act.
- (d) An offence involving the negligent handling or loss of a firearm while the firearm was in his or her possession or under his or her direct control.
- (e) An offence involving the handling of a firearm while under the influence of any substance, which has an intoxicating or narcotic effect.
- (f) Any other crime or offence in the commission of which a firearm was used, whether the firearm was used or handled by that person or by another participant in the offence.

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- (g) Any offence involving violence, sexual abuse or dishonesty, for which the accused is, sentenced to a period of imprisonment without the option of a fine.
- (h) Any other offence under or in terms of this Act in respect of which the accused is sentenced to a period of imprisonment without the option of a fine.
- (i) Any offence involving physical or sexual abuse occurring in a domestic relationship as defined in section 1 of the Domestic Violence Act, 1998 (Act No. 116 of 1998).
- (j) Any offence involving the abuse of alcohol or drugs.
- (k) Any offence involving dealing in drugs.
- (l) Any offence in terms of the Domestic Violence Act, 1998 (Act No. 116 of 1998) in respect of which the accused is sentenced to a period of imprisonment without the option of a fine.
- (m) Any offence in terms of the Explosives Act, 1956 (Act No. 26 of 1956), in respect of which the accused is sentenced to a period of imprisonment without the option of a fine.
- (n) Any offence involving sabotage, terrorism, public violence, arson, intimidation, rape, kidnapping or child theft.
- (o) Any conspiracy, incitement or attempt to commit an offence referred to above.

Section 103 (2) (a) A court which convicts a person of a crime or offence referred to in Schedule 2 and which is not a crime or offence contemplated in Subsection (1), must enquire and determine whether that person is unfit to possess a firearm.

- (b) If a court, acting in terms of paragraph (a), determines that a person is unfit to possess a firearm, it must make a declaration to that effect.

Section 103 (3) A court which has convicted a person of a crime or an offence contemplated in Subsection (1), has made a determination contemplated in that subsection or has made a declaration in terms of Subsection (2) must notify the Registrar in writing of that conviction, determination or declaration.

Section 103 (4) Unless a determination that a person is not unfit to possess a firearm has been made in terms of Subsection (1), a notice contemplated in Subsection (3) must be accompanied by a court order for the immediate search for and seizure of:

- (a) All competency certificates, licenses, authorisations and permits issued to the relevant person in terms of this Act.
- (b) All firearms in his or her possession.
- (c) All ammunition in his or her possession.

Section 103 (5) A firearm and any other item seized in terms of Subsection (4) must be kept by the South African Police Service or, if appropriate, by the Military Police, until an appeal against the conviction or sentence has been finalised or the time for an appeal has elapsed.

39. Effect of a declaration

Section 104. (1) (a) All competency certificates, licenses, authorisations and permits issued in terms of this Act to any person who becomes or is declared unfit to possess a firearm in terms of Section 102 or 103, cease to be valid from the date of the conviction or the declaration, as the case may be.

Section 104. (b) Despite the noting of an appeal against the decision of a court or of the Registrar, the status of unfitness contemplated in paragraph (a) remains in effect pending the finalisation of the appeal.

Section 104 (2) A person who becomes or is declared unfit to possess a firearm in terms of Section 102 or 103 must within 24 hours surrender to the nearest police station:

- (a) All competency certificates, licenses, authorisations and permits issued to him or her in terms of this Act.
- (b) All firearms in his or her possession.
- (c) All ammunition in his or her possession.

Section 104. (3) (a) A person who has surrendered his or her firearm as contemplated in Subsection (2) must dispose of the firearm and ammunition through a dealer or in such manner as the Registrar may determine:

- (i) If an appeal is lodged and that appeal is unsuccessful, within 60 days of the finalisation of the appeal.
- (ii) If no appeal is lodged, within 60 days of the receipt of a written notice from the Registrar informing the person of his or her unfitness to possess a fire arm.

- (b) If the firearm and ammunition are not disposed of within 60 days, they must be forfeited to the State and destroyed or disposed of as prescribed.
- (c) The period of 60 days referred to in this subsection may be extended by the Registrar on good cause shown.
- (d) For the purposes of subsection (3) (a), the Registrar must release the firearm and ammunition in question to a dealer identified by the relevant person, for disposal by that dealer on behalf of the person.

Section 104 (4) (a) The holder of an additional license referred to in Section 12(1) may, if the holder of the license becomes or is declared unfit to possess a firearm, apply to the Registrar for the issue of a new license in his or her name.

- (b) If the holder of an additional license does not make an application referred to in paragraph (a) within 30 days of the:
 - (i) Date on which the time for an appeal elapses.
 - (ii) Finalisation of the appeal if it does not affect the status of unfitness, the additional firearm license lapses.

Section 104 (5) If the decision leading to the status of unfitness to possess a firearm of any person is set aside, any seized or surrendered firearm, ammunition, license, permit or authorisation belonging to any such person, must be returned.

Section 104 (6) Subject to Section 9(3) (b) and after a period of five years calculated from the date of the decision leading to the status of unfitness to possess a firearm, the person who has become or been declared unfit to possess a firearm may apply for a new competency certificate, license, authorisation or permit in accordance with the provisions of this Act.

40. Production of licenses and firearms for inspection

Section 106. (1) Subject to section 107, any holder of a license, permit or authorization issued in terms of this Act must:

- (a) Produce the license, permit or authorization for inspection within seven days of being required to do so by any police official or by any person authorized by the Registrar;
- (b) Maintain the license, permit or authorization in such a state that it can be produced in an undefaced and legible condition; and
- (c) Produce the firearm in respect of which the license, permit or authorization is issued within seven days of being required to do so by any police official or by any person authorized by the Registrar.

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Section 106 (2) A police official or an authorized person, when exercising a power in terms of subsection (1) must:

- (a) Identify himself or herself to the person referred to in subsection (1); and
- (b) Produce his or her appointment certificate or authorization.

41. Duty to comply with request of police official or authorized person

Section 107. (1) Any person who carries with him or her a firearm must at the request of a police official or any person authorized by the Registrar produce the license, permit or authorization, as the case may be, in respect of such firearm for inspection.

Section 107 (2) A person referred to in subsection (1) must:

- (a) At the request and to the satisfaction of a police official or any person authorized by the Registrar, identify himself or herself forthwith; and
- (b) At the request of a police official or any person authorized by the Registrar, produce such firearm for inspection.

Section 107 (3) If a person fails to comply with subsection (1) or (2), the police official or authorized person may seize the firearm without a warrant and keep the firearm in custody until the license, permit or authorization is produced or the firearm is disposed of in terms of this Act.

Section 107 (4) A police official or an authorized person, when exercising a power in terms of subsection (1) or (2) must:

- (a) Identify himself or herself to the person referred to in subsection (1); and
- (b) Produce his or her appointment certificate or authorization.

42. Request for information

Section 108. (1) A police official or any person authorized by the Registrar who has reasonable grounds to believe that a person has or recently had a firearm or ammunition in his or her possession, may request that person to:

- (a) State his or her full name, age, residential and employment address;
- (b) Produce his or her license, permit or authorization for the possession of the firearm;
- (c) Answer questions relating to the whereabouts of the firearm; and

- (d) Furnish any other information reasonably required by the police official or authorized person.

Section 108 (2) A police official or an authorized person, when exercising a power in terms of subsection (1) must:

- (a) Identify himself or herself to the person referred to in subsection (1); and
- (b) Produce his or her appointment certificate or authorization.

43. Inspection of premises

Section 109. (1) A police official or any person authorized by the Registrar may enter any:

- (a) Place of business of a dealer;
- (b) Firearm or ammunition factory or place of business of a manufacturer of firearms and ammunition;
- (c) Place of business of a gunsmith;
- (d) Place of business of the holder of an import or export permit;
- (e) Place of business, including any vehicle, vessel or aircraft, of an authorized transporter of firearms and ammunition;
- (f) Office or premises of an Official Institution which may issue a permit to its employees to possess and use firearms; or
- (g) Place of business, including any vehicle, vessel or aircraft, of the holder of a license in respect of firearms used for business purposes referred to in section 20, and conduct such inspection as may be necessary in order to determine whether the requirements and conditions of this Act or of any competency certificate, license, permit or authorization issued in terms of this Act are being complied with.

Section 109 (2) The Registrar must comply with such security arrangements as may be agreed upon with the head of the Official Institution in question.

44. Bodyprints and bodily samples

Section 113. (1) Any police official may without warrant take the fingerprints, palm-prints, footprints and bodily samples of a person or a group of persons or may cause any such prints or samples to be taken, if:

- (a) There are reasonable grounds to suspect that that person or that one or more of the persons in that group has committed an offence punishable with imprisonment for a period of five years or longer; and
- (b) There are reasonable grounds to believe that the prints or samples or the results of an examination thereof, will be of value in the investigation

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excluding or including one or more of the persons as a possible perpetrator of the offence.

Section 113 (2) The person who has control over prints or samples taken in terms of this section:

- (a) May examine them for purposes of the investigation of the relevant offence or cause them to be so examined; and
- (b) Must immediately destroy them when it is clear that they will not be of value as evidence.

Section 113 (3) Bodily samples to be taken from the body of a person, may only be taken by a registered medical practitioner or a registered nurse.

Section 113 (4) A police official may do such tests, or cause such tests to be done, as may be necessary to determine whether a person suspected of having handled or discharged a firearm has indeed handled or discharged a firearm.

45. Ballistic testing

Section 114. (1) Any police official may seize, test-fire and examine such number of firearms as are necessary or such ammunition as is necessary, if:

- (a) There are reasonable grounds to suspect that one or more of the firearms or the ammunition has been used in the commission of an offence which is punishable in terms of this Act with imprisonment for a period of five years or longer; and
- (b) There are reasonable grounds to believe that one or more of the firearms or the ammunition or the results of the test-firing and examination, will be of value in the investigation by excluding or including:
 - (i) One or more of those firearms or the ammunition as having been used in the commission of the offence; or
 - (ii) One or more persons as possible perpetrators of the offence.

Section 114 (2) The person who has control over a firearm or ammunition seized in terms of this section must immediately return it or otherwise dispose of it in terms of this Act when it is clear that it will not be of value as evidence.

46. Inspection, search and seizure for inquiry or investigation (with special warrant)

Section 115. (1) For purposes of any inquiry or investigation relating to the application of this Act and subject to subsection (4), the Registrar or any person authorized in writing by the Registrar may:

- (a) At any reasonable time and without prior notice, enter any business or industrial premises; or
- (b) At any reasonable time and with reasonable notice, enter any dwelling on or in which anything relating to the subject-matter of the inquiry or investigation is or is suspected to be.

Section 115 (2) The Registrar or person authorized may:

- (a) Inspect and search any premises or dwelling contemplated in subsection (1) and make such enquiries as may be necessary for purposes of the inquiry or investigation;
- (b) Examine anything found on the premises or dwelling which may have a bearing on the subject-matter of the inquiry or investigation;
- (c) Request information or an explanation regarding such object from the owner or person in control of those premises or from any person in whose possession or under whose control anything referred to in paragraph (b) is found;
- (d) Make copies of or extracts from any book or document found on or in the premises or dwelling which may have a bearing on the subject-matter of the inquiry or investigation and request an explanation of such book, document or any entry therein from any person suspected of having knowledge thereof; and
- (e) Against the issue of a written receipt, seize anything on or in the premises or dwelling which may have a bearing on the subject-matter of the inquiry or investigation.

Section 115 (3) Any entry upon, inspection of or search of any premises or dwelling, or questioning of any person, in terms of this section must be carried out with strict regard to decency and order.

Section 115 (4) Any power contemplated in subsection (1) may be exercised only:

- (a) In terms of a warrant issued by a judge or magistrate; or
- (b) Without warrant by a police official contemplated in paragraph (a) of the definition of “police official” in section (1) if:
 - (i) There are reasonable grounds to believe that a warrant would be issued and the delay in obtaining the warrant would defeat the object for which the power is exercised; or
 - (ii) The person who is competent to do so consents to the exercise of the power.

Section 115 (5) (a) A warrant may only be issued if it appears from evidence under oath or on affirmation that there are reasonable grounds to suspect that anything referred to in subsection (2) is or may be on the premises or in the dwelling in question.

(b) The evidence must contain information regarding the:

- (i) Nature of the inquiry or investigation to be conducted;
- (ii) Reason for or suspicion which gave rise to the inquiry or investigation;
- (iii) Need for search and seizure in terms of this section; and
- (iv) Premises on which the warrant is to be executed.

Section 115 (6) Subject to subsection (7), sections 21(3) and 27 of the Criminal Procedure Act, 1977 (Act No. 51 of 1977), apply, with the necessary changes, to the execution of a warrant or to a search in terms of this section.

Section 115 (7) A warrant contemplated in this section remains in force until”:

- (a) It is executed;
- (b) It is cancelled; or
- (c) The expiry of three months from the date of its issue, whichever may occur first?

47. Presumption of possession of firearm or ammunition

Section 117. (1) For purposes of this section “residential premises” does not include a hotel, hostel, or an apartment building, but includes a room or suite in a hotel, a room in a hostel and an apartment in an apartment building.

Section 117 (2) Whenever a person is charged in terms of this Act with an offence of which the possession of a firearm or ammunition is an element, and the State can show that despite the taking of reasonable steps it was not able with reasonable certainty to link the possession of the firearm or ammunition to any other person, the following circumstances will, in the absence of evidence to the contrary which raises reasonable doubt, be sufficient evidence of possession by that person of the firearm or ammunition where it is proved that the firearm or ammunition was found:

- (a) On residential premises and the person was, at the time:
 - (i) In control of such premises; or
 - (ii) Over the age of 16 years and ordinarily resident at such premises;
- (b) Where it is proved that the firearm or ammunition was found buried in or hidden on land used for residential purposes and the person was, at the time:
 - (i) In control of such land;
 - (ii) Employed to work on the land in or on which the firearm or ammunition was found; or
 - (iii) Over the age of 16 years and ordinarily resident on such land;
- (c) On premises other than residential premises and the person was, at the time:
 - (i) In control of such premises;
 - (ii) Ordinarily employed on the premises;
 - (iii) Present in the immediate vicinity of the place on the premises where the firearm or ammunition was found and the circumstances indicate that the firearm or ammunition should have been visible to that person; or
 - (iv) In control of a locker, cupboard or other container within which the firearm or ammunition was found;
- (d) In or on a vehicle and the person was, at the time:
 - (i) The driver of the vehicle;
 - (ii) The person in charge of the vehicle;
 - (iii) in control of all the goods on the vehicle;

- (iv) The consignor of any goods in or among which the firearm or ammunition was found;
 - (v) The only person who had access to the firearm or ammunition;
 - (vi) The employer of the driver of the vehicle and present on the vehicle; or
 - (vii) Over the age of 16 years and present on the vehicle;
- (e) On any aircraft other than an aircraft which was used to convey passengers for gain, and the person was at the time:
- (i) Present on the aircraft and in charge of the aircraft; or
 - (ii) Over the age of 16 years and present on the aircraft;
- (f) In the hold of an aircraft and the person was, at the time, the person in charge of the goods in the hold;
- (g) In a place on an aircraft or vessel:
- (i) To which no one besides the person had access; or
 - (ii) Where the circumstances indicate that the firearm or ammunition should have been visible to no one besides the person;
- (h) On any vessel other than a vessel which was used to convey passengers for gain, and the person was, at the time:
- (i) In charge of that vessel or that part of the vessel in which the firearm or ammunition was found;
 - (ii) Ordinarily employed in the immediate vicinity of the place on the vessel where the firearm or ammunition was found; or
 - (iii) Over the age of 16 years and present in that part of the vessel; or
- (i) In the cargo of a vessel and the person was, at the time:
- (i) In control of the cargo of the vessel; or
 - (ii) The consignor of any goods in or among which the firearm or ammunition was found.

Section 117 (3) In any criminal proceedings against a person where it is alleged that such person has injured or killed another person or has damaged property belonging to another person, the following circumstances will, in the absence of evidence to the contrary which raises a reasonable doubt, be sufficient evidence that such person participated in the injury, killing or damage, where it is proved that:

- (a) The person was driving, or was a passenger in, a vehicle other than a vehicle designed or licensed to convey more than 20 passengers;

- (b) A firearm was discharged from that vehicle while the person was driving or was a passenger in the vehicle; and
- (c) As a result of such discharge, a person was injured or killed, or property was damaged.

48. Presumptions relating to failure to report

Section 118. (1) Whenever a person is charged with an offence in terms of this Act of failing to report the loss, theft or destruction of a firearm and it is proved that such person was, at the time, the licensed or authorized possessor of the firearm alleged to have been lost, stolen or destroyed, proof that the person has failed to produce such firearm within seven days of the request by a police official to do so, will, in the absence of evidence to the contrary which raises reasonable doubt, be sufficient evidence that the firearm has been lost, stolen or destroyed.

Section 118 (2) Whenever a person is charged with an offence in terms of this Act of failing to furnish information or particulars on request of a police official and it is proved that such person was, at the time, the licensed or authorized possessor of the firearm alleged to have been lost, stolen or destroyed, proof that the person has failed to produce such information or particulars within seven days of the request of a police official to do so, will, in the absence of evidence to the contrary which raises reasonable doubt, be sufficient evidence that the person has failed to furnish such information or particulars.

49. Presumption of failure to take reasonable steps

Section 119. Whenever a person is charged in terms of this Act with an offence of failing to take reasonable steps to ensure that no firearm or ammunition is brought onto premises, a vehicle, a vessel or an aircraft under his or her ownership or control in contravention of this Act, proof that the firearm or ammunition was brought onto premises, a vehicle, a vessel or an aircraft under his or her ownership or control, will, in the absence of evidence to the contrary which raises reasonable doubt, be sufficient evidence that he or she failed to take such reasonable steps.

50. Offences, penalties and administrative fines

Section 120. (1) A person is guilty of an offence if he or she contravenes or fails to comply with any:

- (a) Provision of this Act;
- (b) Condition of a license, permit or authorization issued or granted by or under this Act; or

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Section 120. (2) (a) Any person who is aware of the existence of a firearm or ammunition that is not in the lawful possession of any person and fails to report the location of the firearm or ammunition to a police official without delay, is guilty of an offence.

- (b) A police official to whom a person has made a report contemplated in paragraph (a), must immediately provide the person with written proof that the report has been made or, in the case of a telephonic or similar report, with the official reference number of the report.

Section 120. (3) It is an offence to:

- (a) Cause bodily injury to any person or cause damage to property of any person by negligently using a firearm, an antique firearm or an airgun;
- (b) Discharge or otherwise handle a firearm, an antique firearm or an airgun in a manner likely to injure or endanger the safety or property of any person or with reckless disregard for the safety or property of any person; or
- (c) Have control of a loaded firearm, an antique firearm or an airgun in circumstances where it creates a risk to the safety or property of any person and not to take reasonable precautions to avoid the danger.

Section 120. (4) It is an offence to handle a firearm, an antique firearm or an airgun while under the influence of a substance which has an intoxicating or a narcotic effect.

Section 120. (5) A person is guilty of an offence if he or she gives control of a firearm, an antique firearm or an airgun to a person whom he or she knows, or ought reasonably to have known:

- (a) To be mentally ill; or
- (b) To be under the influence of a substance which has an intoxicating or a narcotic effect?

Section 120. (6) It is an offence to point:

- (a) Any firearm, an antique firearm or an airgun, whether or not it is loaded or capable of being discharged, at any other person, without good reason to do so; or
- (b) Anything which is likely to lead a person to believe that it is a firearm, an antique firearm or an airgun at any other person, without good reason to do so.

Section 120. (7) It is an offence to discharge a firearm, an antique firearm or an airgun in a built up area or any public place, without good reason to do so.

Section 120. (8) A person is guilty of an offence if he or she:

- (a) Fails to lock away his or her firearm or a firearm in his or her possession in a prescribed safe, strong-room or device for the safe-keeping when such firearm is not carried on his or her person or is not under his or her direct control; or
- (b) Loses a firearm, or is otherwise dispossessed of a firearm owing to that person's failure to:
 - (i) Lock the firearm away in a prescribed safe, strong-room or device for the safe-keeping of a firearm;
 - (ii) Take reasonable steps to prevent the loss or theft of the firearm while the firearm was on his or her person or under his or her direct control; or
 - (iii) Keep the keys to such safe, strong-room or device in safe custody.

Section 120. (9) It is an offence to:

- (a) Add any word, figure or letter to a competency certificate, license, permit or authorization as issued, without the Registrar's permission;
- (b) Alter or erase any words, figures or letters from any competency certificate, license, permit or authorization, without the Registrar's permission;
- (c) Use or possess any competency certificate, license, permit or authorization:
 - (i) To which any words, figures or letters have been unlawfully added;
 - (ii) From which any words, figures or letters have been unlawfully erased; or
 - (iii) On which any words, figures or letters have been unlawfully altered;
- (d) Part with a competency certificate, license, permit or authorization in order that it may be used by any person other than the person to whom it was issued or granted;
- (e) Use a competency certificate, license, permit or authorization issued in the name of another person to procure possession of a firearm or ammunition;
- (f) Supply particulars, information or answers in an application for a competency certificate, license, permit or authorization in terms of this Act, knowing them to be false, incorrect or misleading or not believing them to be correct;

- (g) Make a false entry in a register which is required to be kept in terms of this Act; or
- (h) Furnish false information in any return required to be submitted in terms of this Act.

Section 120. (10) It is an offence to:

- (a) Sell, supply or in any other manner give possession of a firearm or ammunition to a person who is not allowed in terms of this Act to possess that firearm or ammunition; or
- (b) Be in possession of any firearm, imitation firearm or ammunition, with intent to commit an offence or to use the firearm or an imitation firearm to resist arrest or prevent the arrest of another person.

Section 120. (11) Any holder of a license, permit or authorization to possess a firearm, and any other person who was in possession of or who had control of a firearm when it was lost, stolen or destroyed and who fails to report the loss, theft or destruction to the police station nearest to the place where it occurred, within 24 hours after having become aware of the loss, theft or destruction of the firearm, is guilty of an offence.

Section 120. (12) It is an offence to obstruct or hinder any person in the exercise of any power or the performance of any duty in terms of this Act.

51. Right of appeal

Section 133. (1) Any person:

- (a) Whose application for a competency certificate, license, permit or authorization in terms of this Act has been refused;
- (b) Whose competency certificate, license, permit, or authorization has been cancelled;
- (c) Whose license, permit or authorization has been issued subject to any condition; or
- (d) Who has received a notice of an administrative decision in terms of this Act which may detrimentally affect his or her rights, may, in the prescribed manner, appeal to the Appeal Board.

Section 133. (2) The Appeal Board may confirm, vary or reverse any decision against which an appeal has been lodged in terms of this section.

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Section 133. (3) The Appeal Board may admit evidence of facts not before the Registrar when he or she made the decision which is the subject of the appeal only if:

- (a) There is a reasonable explanation for the failure timeously to inform the Registrar of the facts; and
- (b) The Registrar has had sufficient opportunity to verify the facts and to present any evidence to the Appeal Board in this regard.

Section 133. (4) Subject to the provisions of this Act, no person is excused from complying with any of the provisions of this Act on the ground that an appeal is pending in terms of this section.

52. Inherited firearms

Section 148. (1) A person who inherits a firearm must:

- (a) If he or she wishes to keep the firearm, apply for an appropriate license, permit or authorization in terms of this Act; or
- (b) If he or she does not wish to acquire the firearm, or fails to obtain the appropriate license, permit or authorization, have the firearm deactivated or dispose of it in terms of this Act.

Section 148 (2) The Registrar may issue a temporary authorization contemplated in section 21, to allow a person who inherits a firearm a reasonable time to dispose of it.

TRANSITIONAL PROVISIONS

1. Item 1: Existing license to possess an arm

(1) Subject to sub item (2) and item 11, any license which was issued in terms of the previous Act and which was valid immediately before the date of the commencement of this Act, remains valid for a period of five years from the date on which this Act comes into operation, unless such a license is terminated, cancelled or surrendered in terms of this Act.

(2) (a) The holder of a license to possess an arm contemplated in sub item (1) must, before the end of the period contemplated in that sub item, in a lawful manner dispose of any firearms in his or her possession in excess of the number that he or she may lawfully possess in terms of this Act.

(b) For the purpose of paragraph (a), Section 31(2) does not apply.

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(3) Any firearm not disposed of as contemplated in sub item (2) may be forfeited to the State and must be disposed of in the prescribed manner.

2. Item 11: Renewal of a license

(1) (a) The holder of a license, permit or authorisation contemplated in item 1, 2, 3, 4 or 5 must apply for the corresponding license, permit or authorisation in terms of this Act within the period determined by the Minister by notice in the Gazette.

(b) Different periods may be determined in terms of paragraph (a) in respect of:

Different licenses, permits or authorisations.

(ii) Holders whose surnames start with different letters of the alphabet, or whose dates of birth fall in different months.

(c) The period contemplated in paragraph (a) must end before the end of the relevant period contemplated in item 1(1) and may not exceed the periods contemplated in item 2, 3, 4 or 5.

(d) If an application for the renewal of a license, permit or authorisation has been lodged within the period provided for in this section, the license, permit or authorisation remains valid until the application is decided.

(2) An application for a license, permit or authorisation contemplated in sub item (1) must in addition to any requirement in terms of this Act be accompanied by:

(a) A certified copy of the existing license, permit or authorisation.

(b) Such other information as may be required.

(3) For purposes of this item, Section 9(2) (r) does not apply.

(4) Any holder of a license, permit or authorisation who fails to apply for the renewal of his or her license, permit or authorisation before the end of the period determined by the Minister in terms of sub item (1), is guilty of an offence and liable on conviction to a fine or to imprisonment for a period not exceeding one year or to both a fine and such imprisonment.

FIREARMS CONTROL ACT: Act 60 of 2000, FIREARM CONTROL REGULATIONS

1. Definitions

NO	WORD/PHRASE	DESCRIPTION
1.	“accredited shooting range”	means a shooting range or tunnel that complies with an applicable compulsory specification set in terms of the Standards Act, 1993 (Act No. 29 of 1993);
2.	“applicant”	includes a natural person or juristic person acting through its responsible person;
3.	“conduct business in hunting”	means a licensed professional hunter who escorts a client for reward to enable such client to hunt wild animals or a licensed hunting outfitter who presents or organizes the hunting of wild animals for clients;
4.	“dedicated procedure”	means action or procedure directed at promoting conformity with the Act;
5.	“firearm transporter”	means a person contemplated in section 86 of the Act;
6.	“game farm”	means an extensive farm that is fenced in such manner: • that game on land outside the fence cannot readily gain access to the land which is fenced; • that game cannot readily escape from the land which is fenced; and • on which herds of game are kept or raised for the purpose of game farming;

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NO	WORD/PHRASE	DESCRIPTION
7.	“game farming”	means large scale farming operations consisting of breeding and running game on a game farm for the purpose of the game being hunted or harvested for their meat, carcasses, skins or as a trophy, against payment of a fee;
8.	“hunting outfitter”	means a person who presents or organizes the hunting of game for reward and who is licensed as such in terms of an applicable provincial legislation;
9.	immediately	means by the end of the following normal business day;
10.	“import”	in relation to firearms or ammunition means to bring them, or cause them to be brought, from outside the Republic of South Africa into the Republic of South Africa and includes the bringing thereof into the Republic of South Africa at any harbor or airport or other place on board any vessel or aircraft or other means of conveyance, irrespective of whether or not the firearms or ammunition are off-loaded from such vessel or aircraft or other means of conveyance for conveyance through the Republic of South Africa to any place outside the Republic of South Africa or for any other purpose, or are intended to be so off-loaded; and “import” , when used as a verb, shall have a corresponding meaning;
11.	“in transit”	means the conveyance through the Republic of South Africa to another country firearms or ammunition that has been imported; 6
12.	“main firearm component”	means the barrel, frame, receiver, slide, bolt or breech-block of a firearm;

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NO	WORD/PHRASE	DESCRIPTION
13.	“multiple import-export permit”	means an import and export permit authorizing the multiple import and export of a specific firearm or ammunition during a specified period;
14.	“person in good standing”	means a person who: • is or remains acceptable to an accredited hunting association, sportsshooting organization or collectors' association as a dedicated member or collector, as the case may be; • actually fulfils the intent of the Act in respect of his or her status as a dedicated hunter or dedicated sports person, or collector as the case may be; and • is not unfit to possess a firearm in terms of the provisions of the Act;
15.	“police station”	includes the offices of a Designated Firearms Officer and a government office designated by the Registrar at which a function in terms of the Act as specified by the Registrar may be exercised;
16.	“professional hunter”	means a person who offers or agrees to escort any other person for reward to hunt game and who is licensed as such in terms of applicable provincial legislation;
17.	“public collection”	means a collection of firearms or ammunition intended to be displayed to the public;
18.	record”	means recorded information regardless of form or medium;

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NO	WORD/PHRASE	DESCRIPTION
19.	“relevant Designated Firearms Officer”	means the Designated Firearms Officer responsible for the area in which the applicant ordinarily resides, and if an application under these regulations pertains to a business of the applicant, the Designated Firearms Officer responsible for the area in which the business is or will be situated, as the case may be;
20.	SABS	means the South African Bureau of Standards referred to in section 2(1) of the Standards Act, 1993 (Act No. 29 of 1993);
21.	“secure locking device”	means a device that can only be opened or released by the use of an electronic, magnetic or mechanical key or by setting the device in accordance with an alphabetical or numerical combination and when affixed to a firearm, prevents the firearm from being detached from a fixed structure;
22.	“State”	means an organ of State as defined in section 239 of the Constitution of the Republic of South Africa, 1996 (Act No. 108 of 1996);
23.	“the Act”	means the Firearms Control Act, 2000 (Act No. 60 of 2000); and (xxiv) “unloaded” means that any propellant, projectile or cartridge which can be discharged from the firearm is not contained in the breech-block or firing chamber of the firearm nor in the cartridge, magazine or cylinder attached to or inserted into the firearm.

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1. Accreditation to provide training in the use of firearms

Regulation 7 (1) An applicant who applies to be accredited to provide training in the use of firearms for the purposes of Section 20(2) (b) of the Act must, in addition to the relevant information required by regulation 2, submit:

- (a) A written undertaking that only a relevant training course in respect of testing and training in the use and handling of firearms, which comply, with the requirement of the South African Qualifications Authority Act, 1995 (Act No. 29 of 1993) read with the Skills Development Act, 1998 (Act No. 97 of 1998) will be used to train persons.
- (b) A description of the security measures pertaining to the storage, transport and safe custody of the firearms to be used in the training.
- (c) A written undertaking that any practical training or testing which will involve the actual firing of a firearm will only be conducted at an accredited shooting range.
- (d) Documentary proof that the applicant is registered in terms of the South African Qualifications Authority Act, 1995 (Act No. 58 of 1995) read with the Skills Development Act, 1998 (Act No. 97 of 1998) with POSLEC-SETA as a service provider to provide the training contemplated in Section 9(2)(q) and (r) and (s) of the Act.

Regulation 7. (2) A person accredited in terms of sub regulation (1) must keep a register wherein the following particulars must be recorded in respect of every person successfully trained by such accredited person:

- (a) The identity number and full names of the person trained.
- (b) The date and place of the training.
- (c) The type of prescribed training.
- (d) In respect of practical training and testing, the type of firearm namely a handgun, rifle or shotgun including the action of the firearm for which training and testing was provided and the test results.
- (e) A certificate undersigned by both the trainer and the person concerned confirming the particulars in sub regulation 2(a) to (d).

Regulation 7 (3) The register contemplated in sub regulation (2) must be available at the place of business of the accredited person and must be retained for a period of six years.

2. Accreditation to provide firearms for use in theatrical, film or television productions

Regulation 8 An applicant who applies for accreditation to provide firearms for use in theatrical, film or television productions must, in addition to the relevant information required by regulation 2, submit:

- (a) A certificate confirming that any modification of firearms licensed to the applicant will only be performed by a gunsmith.
- (b) Proof to the satisfaction of the Registrar that the applicant is actually involved in the business of providing firearms for theatrical, film or television productions.
- (c) A comprehensive report comprising the following information :
 - (i) A description of the safe custody facilities and safety control procedures regarding the safeguarding of firearms to be utilised by the applicant.
 - (ii) Details regarding the records that will be used to control the firearms.
 - (iii) The initials, surname, identity number and two proof signatures of the person who will be responsible for the control, safe custody and issuing of firearms.
 - (iv) Confirmation, if it is required that the persons to whom firearms are issued will have to use live ammunition with the firearm, that such person will have received basic training in the safe use of the firearm, prior to the firearm being used by such person.
 - (v) The details of the type of firearms and the quantity of ammunition the applicant intends acquiring.
 - (vi) Details of the place where records in respect of the issuing of every firearm will be kept for inspection by a police official.
 - (vii) A motivation regarding the need for the applicant to possess the firearms.

3. Conditions regarding the providing of a firearm for use by another person in respect of a license to possess a firearm for business purposes

Regulation 21 (1) The holder of a license to possess a firearm for business purposes may only provide the firearm for use by another person if such other person:

- (a) Possesses the firearm for the business purpose specified on the license.
- (b) Has in his or her possession a valid official identity document or passport by means of which he or she may be identified.

- (c) Is in possession of a written authorisation, issued under signature of the holder of the license or person authorised thereto in writing by the holder of the license which contains the:
 - (i) Full names and identity number or passport number of the person to whom the firearm is provided for use.
 - (ii) Name and address of the holder of the license, the license number and date of issue of the license as reflected on the license applicable to the firearm;
 - (iii) Type, calibre, make, model and all marked serial numbers or other identification marks on the firearm.
 - (iv) Intended business purpose for which the firearm will be issued.
 - (v) Period, reason and place for which possession is granted. Provided that the period stipulated may not exceed a continuous period of 72 hours or a succession of such periods or, in the case of a license issued in terms of Section 20(2) (d) or (e) of the Act, for a period not exceeding the duration of a specific hunting trip for which the person is contracted as a client, employee or sub-contractor of the business.
- (d) In cases other than a security officer as contemplated in Section 20(5) (b) of the Act:
 - (i) Where a firearm is not provided to the same person on a regular basis and where the firearm will be used to fire ammunition that the person, if not the holder of a competency certificate, must ensure that the person has the necessary knowledge of the safe and efficient handling of the firearm; or
 - (ii) Where a firearm is provided to the same person on a regular basis, that the person, if not the holder of a competency certificate, has successfully completed the prescribed test and training in the safe and efficient handling of a firearm as contemplated in Regulation 7(1)(a).
- (e) Is not prohibited by law to possess the firearm.

Regulation 21 (2) If the holder of a license to possess a firearm for business purposes is a security company, that security company may, in addition to the requirements of Section 20(5)(b) of the Act and the conditions in sub regulation (1)(a) and (b), only provide a firearm if:

- (a) That person is a security officer employed by them for the rendering of a security service.
- (b) That the person is in possession of a competency certificate to possess a firearm.
- (c) If the receipt, possession and carrying of the firearm by the security officer is in accordance with the Act.
- (d) The security provider, excluding a person providing a security service for its own business, and the security officer are both registered as security service providers in terms of the Act and their respective registrations are not suspended.
- (e) The security officer is in possession of his or her certificate of identification that was issued to him or her in accordance with the provisions of the Private Security Industry Regulation Act, 2001 (Act No. 56 of 2001).
- (f) The security officer is in possession of an original written authorisation, issued under the signature of the holder of the license in respect of the firearm, or a person authorised thereto in writing by the holder of the license, containing the following information:
 - (i) The full names, identity number, registration number and employment address of the person to whom the firearm is issued.
 - (ii) The name, address and registration number of the security company which is the holder of the license and the license number and date of issue of the license as reflected on the license.
 - (iii) The type, calibre, make, model and all marked serial numbers or other identification marks of the firearm.
 - (iv) An authorisation to possess the firearm for the rendering of a security service which is clearly stated.
 - (v) The period and place for which possession of the firearm is granted.
- (g) The security officer is on duty or standby duty or is about to perform duty or standby duty.
- (h) The necessary particulars of the issuing of the firearm and ammunition are entered into all the registers that must be kept by the security company in terms of the Act.
 - (i) The security officer is not charged for a criminal offence or has signed a warning statement to a police officer advising him or her that he or she is under such investigation in respect of an offence

relating to the unlawful use of force with a firearm or is not being criminally prosecuted in respect of such an offence;

- (j) The security officer is not charged under an improper conduct enquiry initiated by the Private Security Industry Authority into an alleged violation by the security officer relating to an offence contemplated in paragraph (i).
- (k) The possession of the firearm by the security officer is necessary for rendering a security service, taking into account the nature of the security service, the contract between the security business and its client, the circumstances under which the service is rendered, the type of firearm and any other relevant fact.
- (l) The security officer has successfully completed the security training required for the rendering of the security service in question.
- (m) The security officer is not under the influence of a substance, which has an intoxicating or narcotic effect.
- (n) The security officer is apparently in a mentally stable condition and the security company has no reason to believe that he or she will use the firearm for an unlawful purpose or in an unlawful or negligent manner.
- (o) The firearm is to be carried in a public place, the security officer is in possession of the holster, holder or other container required in terms of the Act for the carrying of the firearm in a public place.
- (p) The security officer is under proper control in the rendering of the security service for the purposes of which a firearm is issued.
- (q) The security officer is issued with no more than the necessary quantity of ammunition for the purposes of rendering the relevant security service.
- (r) The security officer signs for receipt of the firearm and all ammunition issued to him or her upon such receipt.
- (s) The security company issuing firearms to security officers employed by it:
 - (i) Maintain all firearms licensed to it and which are issued to security officers in a proper working condition, free of any defects, which may render them an inherent source of danger.
 - (ii) Adhere to proper and safe procedures in respect of the issuing and returning of and control over firearms and ammunition issued to security officers.

- (i) Enforce a proper disciplinary code in respect of the conduct of security officers regarding their receipt, possession, carrying, use, safe custody and return of the firearms and ammunition and in respect of the conduct of all its other personnel involved with such functions.
- (ii) Ensure that firearms and ammunition issued to security officers are returned for safe custody after completion of their duties or work shifts.
- (iii) Actively monitor whether security officers who are issued with firearms and ammunition are trained, instructed and guided in respect of the possession, handling and use of firearms.
- (iv) Actively monitor whether security officers also possess their own firearms or are issued with firearms by any other person while rendering a security service and take such firearms in custody for safe storage during the period that the security officer is in possession of the firearm issued by the security service provider.
- (v) Ensure that security officers issued with firearms are properly assessed, which does not include psychological or psychiatric testing, at least every 24 months or within a shorter period as may be reasonably necessary in the circumstances, to verify that they do not suffer from any condition that would render their continued possession of a firearm and ammunition as posing an unreasonable risk to any person.
- (vi) Ensure that the security officers issued with firearms undergo at least one proper practical training session at the cost of the security company at least every 12 months, or within a shorter period as may be reasonably necessary in the circumstances in the proper and safe handling and use of the relevant firearm and ammunition.
- (vii) Ensure that the security officers issued with firearms attend at least one briefing session at the cost of the security company every 12 months or within a shorter period as may be reasonably necessary in the circumstances, during which they are properly informed of the relevant legal principles, rules and procedures and of their legal duties regarding the possession, carrying, safe custody and use of firearms and ammunition issued to them.
- (viii) Inform a client of the security company on whose premises a security officer is rendering a security service of the possession of a firearm by the security officer, unless the contract between the security company and its client provides for the possession of a firearm.
- (ix) Ensure that the security officers issued with firearms attend at least one briefing session at the cost of the security company every 12 months or within a shorter period as may be reasonably necessary in the circumstances, during which they are properly informed of the relevant legal principles, rules and procedures and of their legal duties regarding the possession, carrying, safe custody and use of firearms and ammunition issued to them.

- (x) Inform a client of the security company on whose premises a security officer is rendering a security service of the possession of a firearm by the security officer, unless the contract between the security company and its client provides for the possession of a firearm.
- (xi) Properly investigate, or initiate such an investigation to be held, to establish all the relevant facts concerning every incident involving the discharge of a firearm by a security officer and keep a full record of such an investigation.
- (xii) Take all relevant steps provided for in law, and all further steps that may be necessary or prudent in the circumstances, in regard to the discharge of a firearm by a security officer, including appropriate counselling and debriefing at the cost of the security company, if the security officer has used a firearm against any person and has caused death or injury.
- (xiii) Immediately inform the nearest police station and the relevant Designated Firearms Officer after the use of a firearm by a security officer whether or not such use caused any death, personal injury or damage, providing the particulars within the knowledge of the security company, as well as particulars contemplated in Regulation 22(3).

Regulation 21 (3) A firearm may only be provided for use to another person if it is in good working condition and free of any apparent defect which may render it an inherent source of danger to any person.

4. Registers in respect of a holder of a license for business purposes

Regulation 22 (1) A register as contemplated in Section 20(6) (a) of the Act:

- (a) Must consist of pages which are all numbered in sequence and all information recorded in it must be written or printed in permanent ink.
- (b) All changes to the information recorded in it must be effected by means of crossing out in permanent ink and not by way of erasure.
- (c) No pages may be removed from it and the person effecting it must sign every alteration.
- (d) Particulars that must be entered in terms of this regulation must be recorded on the receipt, transfer or disposal of the firearm concerned.
- (e) Must contain the following information of all firearms in respect of which the business has a license, permit or authorisation:
 - (i) The make, type, calibre, as well as every manufacturer's serial number or additional identification mark contemplated in Section 23(4) of the Act that reflected on the firearm.
 - (ii) The license, permit or authorisation number and date of issue in respect of the firearm.
 - (iii) The date of acquisition and disposal of the firearm.
 - (iv) The full names, identity number, address and firearm license, permit or authorisation number of the person from whom the firearm was acquired or to whom it was disposed to.

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Regulation 22 (2) With regard to the providing of a firearm for use by another person as contemplated in Section 20(5) (a) of the Act, a register that complies with sub regulation 1(a) to (d) must be maintained containing the following information:

- (a) The make, type, calibre of the firearm, as well as every manufacturer's serial number or additional identification mark contemplated in Section 23(4) of the Act that is reflected on the firearm.
- (b) The initials, surname and the identity number of the person to whom the firearm was provided.
- (c) The date and time of such a provision.
- (d) The date and time of return of the firearm.
- (e) The signature of the person to whom the firearm was provided at the handing over of the firearm and on its return, serving as confirmation of the receipt and return of the firearm.
- (f) A copy of the written authorisation contemplated in Regulation 21(1) (c).
- (g) In the case of a security company, the registration number of the security officer to whom the firearm was provided.

Regulation 22 (3) In respect of a security company a register complying with sub regulation 1(a) to (d) must be maintained and it must contain the following particulars regarding a firearm that was issued to and discharged by a security officer:

- (a) The full names, identity number and registration number of the security officer discharging the firearm.
- (b) Particulars of the firearm as contained in sub regulation (2) (a).
- (c) The date, time, place and circumstances pertaining to the discharge of the firearm.
- (d) Information of any damage, injury or death caused by the discharge of the firearm.
- (e) The date, time, police station and reference number allocated by the police station of the reporting of the incident to that police station.

Regulation 22 (4) The registers referred to in sub regulation (1), (2) and (3) must be maintained:

- (a) At the registered address of the business concerned.
- (b) By the person who exercise control over the firearms at the place where the firearms are stored.

Regulation 22 (5) Subject to the provisions of Section 146 of the Act and Regulation 102(1), the register contemplated in this regulation must be kept for a period of 10 years from the date of the last entry therein on the business premises specified on the license.

5. Packaging of firearms and ammunition during transportation

Regulation 68 (1) During transportation of firearms and ammunition by a holder of a firearm bearers' permit:

- (a) Firearms must be packed separately from ammunition and all ammunition must be removed from firearms in a safe manner before transportation.
- (b) Firearms and ammunition must be transported in an appropriately locked metal container and must be packed to ensure maximum safety and minimum exposure.
- (c) Direct continuous supervision and control of firearms and ammunition being transported is required.

Regulation 68 (2) These provisions do not derogate from any other provision in a law prescribing standards for the transportation of firearms and ammunition.

6. Safe custody of firearms and ammunition

Regulation 86 (1) When a firearm is not under the direct personal and physical control of a holder of a license, authorisation or permit to possess the firearm, the firearm and its ammunition must be stored in a safe or strongroom that conforms to the prescripts of SABS Standard 953-1 and 953-2, unless otherwise specifically provided in these regulations.

Regulation 86 (4) (a) A person who holds a license to possess a firearm may store a firearm, in respect of which he or she does not hold a license, if:

- (i) He or she is in possession of written permission given by the person who holds a license, permit or authorisation to possess that firearm and which permission is endorsed by a relevant Designated Firearms Officer.
- (ii) The firearm is stored in a prescribed safe at the place mentioned in the permission contemplated in subparagraph (i).
- (b) Only the person who holds a license, permit or authorisation to possess the firearm may transport that firearm to and from the place where that firearm is to be stored in terms of paragraph (a).
- (c) The permissions contemplated in paragraph (a), must specify the period for which the person concerned may store the firearm, the reason for the storage and it must contain sufficient particulars to identify the license, permit or authorisation and also the firearm in question, as well as the name, identity number and physical address of the holder of the license and the person to whom the authority is granted.

- (d) A permit contemplated in subparagraph (a) may be cancelled at anytime by a relevant Designated Firearms Officer on good cause.
- (e) A firearm stored in terms of this regulation may not be used by the person who provides the storage or any other person while it is stored in terms of this regulation.
- (f) Only the holder of the license applying to the firearm may remove the firearm from the safe or strongroom where it is stored.

Regulation 86 (5) In the case of any premises where firearm control is exercised by the occupier of the premises, the holder of a license, authority or permit issued in terms of the Act, may hand a firearm and ammunition that is in the possession of the said holder when entering the premises, to a person designated thereto by the said occupier, who must hold an authorisation issued in terms of Section 21 of the Act, to store the firearm and ammunition on behalf of the holder of the license, authority or permit for such period as is necessary under the circumstances in a safe or strongroom that complies with the standards set out in SABS Standard 953-1 or 953-2 or a prescribed lock-away safe that can only be opened by the designated person and the holder of the license jointly and which is installed on the premises.

Regulation 86 (6) Where a temporary authorisation has been issued:

- (a) To possess a firearm in terms of Section 21 of the Act.
- (b) To trade in firearms or ammunition on premises other than those specified in the applicable dealer's license in terms of Section 36 of the Act.
- (c) To display firearms or ammunition at any other premises than those specified on the applicable manufacturer's license in terms of Section 50 of the Act.
- (d) To conduct business as a gunsmith on any other premises other than those specified in the applicable gunsmith's license in terms of Section 64 of the Act. The Registrar may in the absence of specific prescripts in terms of these regulations impose such reasonable conditions as are necessary under the circumstances concerning the safe custody of the firearms and ammunition.

Regulation 86 (8) An existing safe, strongroom, device, apparatus or instrument for the safe custody of Firearms, which complies with the regulations under the previous Act, will be deemed to comply with the standards set out in SABS Standard 953-1 and 953-2 for all purposes of this Act, if the Registrar issues a certificate to this effect.

Regulation 86 (9) The Registrar may issue a certificate contemplated in sub regulation (8) in respect of any safe, strongroom, device, apparatus or instrument in existence at the inception of these Regulations that does not technically correspond to the specifications set in the Standards referred to in sub regulation (8), but that would, in the opinion of the Registrar, effectively and substantively serve the same purpose:

Provided that the specification accepted by the Registrar must not be less than as was prescribed in terms of the previous Act at the time of the latest issuing of a license or other applicable authorisation to possess a firearm for which the safe, strongroom, device, apparatus or instrument was approved.

Regulation 86 (11) (a) Firearms other than those, in respect of which a license for self-defence in terms of Section 13 of the Act has been issued, must be stored unloaded in accordance with these regulations:

- (b) Any person who may lawfully possess a firearm or ammunition shall store these in a prescribed safe or strongroom, to which he or she shall have at all time exclusive access or his or her presence and cooperation shall be a necessary prerequisite for access to the relevant firearm and ammunition unless:
 - (i) The storage is undertaken by the holder of a dealers' or gunsmiths' license in which case the dealer or the dealers' personnel with valid competency certificates, or the gunsmith may have access to the safe or strongroom.
 - (ii) The firearm is temporarily stored in a safe or strongroom that conforms to the prescripts of SABS Standard 953-1 and 953-2 or a lock-away safe, device, apparatus or instrument for the safe custody of a firearm that conforms to the prescripts of sub regulation (12), that is under the control of a holder of a license, authorisation or permit issued in terms of this Act. The person storing the firearm must in writing notify the Designated Firearm Officer in whose area the firearm is temporarily stored.

Regulation 86 (12) A lock-away safe, apparatus, device and instrument for safe custody of a firearm or ammunition, must be to the satisfaction of the Registrar comply with the following requirements:

- (a) Be manufactured from steel of at least 2 mm thick.
- (b) Be capable of enclosing or covering the firearm concerned wholly.
- (c) Have an effective integral locking mechanism.
- (d) Have a hinge mechanism for the cover or lid thereof, which shall ensure that when the locking pin thereof is removed, the cover or lid shall not be capable of being opened or removed.
- (e) Have a facility with the aid or use of which the lock-away safe, apparatus, device or instrument may be securely affixed to another structure such as a wall or a floor, or the body of a vehicle.
- (f) In the case of a lock-away safe used as contemplated in sub regulation.
- (g) If such a safe can only be locked or opened with two or more keys that have to be used jointly.

7. Appeal procedure

Regulation 91. (1) An appeal by a person referred to in section 133 of the Act, must be noted by the person or his or her legal representative -

- (a) Within 90 days after the date on which the Registrar made the decision; and
- (b) By submitting an appeal notice to the Appeal Board in the form prescribed in Annexure "A" to these regulations.

Regulation 91 (2) An appeal notice must clearly indicate the decision that was taken, the date of the decision, ground or grounds of appeal, and by attaching written submissions in support of the appeal to the appeal notice.

Regulation 91 (3) The Appeal Board may condone the late submission of an appeal notice on good cause shown by the appellant why it was impossible for him or her to comply with the relevant provision as to time, or that there is any other sound reason why the appellant cannot or could not comply with such provision.

Regulation 91 (4) A copy of the notification contemplated in regulation 89(c) must be attached to appeal notice.

Regulation 91 (5) An appeal must be submitted to the Appeal Board by hand, facsimile or by post and must be addressed to the Chairperson of the Appeal Board at the following addresses or numbers:

POSTAL ADDRESS:

Private Bag X811
Pretoria
0001;

PHYSICAL ADDRESS:

Ground Floor
Veritas Building
Volkstem Avenue,
Pretoria;

Facsimile address: (012) 353 6211;
E-mail address: cfr-appealboard@saps.gov.za.

Regulation 91 (6) The Appeal Board must acknowledge receipt of an appeal notice and the date of such receipt in writing, and may do so by post, facsimile or by appending the acknowledgment on a copy of the appeal notice in the event of the

appeal being delivered by hand.

Regulation 91 (7) The Appeal Board must inform the relevant official who made the decision in question of the appeal, supply him or her with a copy of the documents referred to in sub-regulation (2), and request him or her to respond in writing within 21 days, as to why the appeal should not be upheld.

Regulation 91 (8) The Appeal Board may request an appellant or the appellant's legal representative to address the Board during the hearing of that appeal, in which case the Appeal Board shall inform the appellant and the official in question that oral representation by the parties will be allowed during the hearing, and afford both parties the opportunity of making oral submissions during the hearing.

Regulation 91 (9) Subject to the provisions of section 133(3) of the Act the Appeal Board may, if it deems it necessary, request additional evidence of facts from any party, in order to allow it to come to a just and fair decision.

(10) The Appeal Board must:

- (a) Finalize an appeal within 45 days after expiry of the 21 days contemplated in sub-regulation (7); and
- (b) Notify an appellant, or his or her legal representative in writing of the outcome of an appeal, within 14 days of the Appeal Board's decision.

Regulation 91 (11) Nothing in this regulation must be construed as referring to a decision of court acting under section 103 of the Act.

8. Surrendering of firearms and ammunition

Regulation 94. (1) A person who is legally entitled to possess a firearm or ammunition in terms of this Act and who is the owner of the firearm or ammunition may surrender that firearm or ammunition to the South African Police Service.

Regulation 94 (2) The firearm or ammunition must be surrendered to the South African Police Service by the handing over of the firearm or ammunition to a police station together with the applicable license, permit or authorization, together with the applicable form determined by the Registrar.

Regulation 94 (3) The South African Police Service may, in accordance with the provisions of the Act, dispose of a firearm or ammunition that is surrendered in terms of sub-regulation (2).

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Regulation 94 (4) In all instances where a firearm or ammunition is surrendered to a police station, or a firearm or ammunition is found, the circumstances may be investigated to establish whether an offence has been committed with, or in respect of such firearm or ammunition and the South African Police Service must dispose of such firearm or ammunition as provided in the Act, subject to the rights of any person who may lawfully possess such firearm or ammunition.

Regulation 94 (5) A receipt must be handed over to the person from whom the firearm or ammunition is received.

9. Deferment of licenses, permits or authorizations in case of theft or loss of firearm

Regulation 99. (1) For the purpose of this regulation “defer” means deferred or partially deferred, resulting in the operation of the license, permit or authorization applicable to the firearm being postponed until a future date.

Regulation 99 (2) Whenever the theft or loss of a firearm has been reported as required in terms of section 120(11) of the Act, all licenses, permits or authorizations applicable to the firearm at the date of such report, shall be deferred indefinitely, but only with respect to the specific firearm in question.

Regulation 99 (3) The holder of a deferred license, permit or authorization is obliged to ensure that the Central Firearms Register is at all times notified in writing of any permanent change to his or her existing postal or residential address.

Regulation 99 (4) Whenever a stolen or lost firearm has been recovered or found and such fact has been reported to the Central Firearms Register, the deferment of such license, permit or authorization shall lapse from the day that the holder of the license, permit or authorization receives the firearm and such license, permit or authorization shall be valid for the remaining period of validity of the license, permit or authorization unless, in the case of a license, it would amount to a licensee having more licenses than the Act would allow for, in which case such licensee shall be afforded an opportunity of disposing any of the excess firearms within 60 days after the service of the notice referred to in sub-regulation (4) or on good cause shown, such extended period as the Registrar may determine.

Regulation 99 (5) The holder of a deferred license, permit or authorization shall be notified by the Registrar by serving at his or her last recorded address notification of the finding or recovery of the relevant firearm within 30 days after such recovery or finding.

10. Change of address

Regulation 100. (1) A notification of the change of an address as required under the Act must be submitted to the relevant Designated Firearms Officer on the applicable form prescribed in Annexure “A”.

Regulation 100 (2) With every notification for a change of the physical address the relevant Designated Firearms Officer must ensure that the safe custody facility at the new address complies with the applicable provision in regulation 86.

11. Change of circumstances

Regulation 107. (1) A person in respect of whom a change of information occurred as contemplated in sections 26(1), 38(1), 52(1) and 66(1) of the Act, must notify the Registrar thereof by submitting to the relevant Designated Firearms Officer a written notification of such change of circumstances on the applicable form as prescribed in Annexure “A”.

Regulation 107 (2) When the replacement of a responsible person as contemplated in section 7(4) of the Act occurs, the juristic person must notify the Registrar thereof by submitting the duly completed applicable form together with a copy of the identity document and a set of fingerprints of the newly nominated person, as well as, documentary proof that the person may lawfully act on behalf of the juristic person.

UNIT STANDARD: 117705

Demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000) applicable to possessing a firearm.

SAQA US ID		UNIT STANDARD TITLE	
117705		Demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000) applicable to possessing a firearm	
SGB NAME		NSB	PROVIDER NAME
SGB Visible Policing		NSB 08-Law, Military Science and Security	
FIELD		SUBFIELD	
Law, Military Science and Security		Safety in Society	
ABET BAND	UNIT STANDARD TYPE	NQF LEVEL	CREDITS
Undefined	Regular	Level 3	3
REGISTRATION STATUS	REGISTRATION START DATE	REGISTRATION END DATE	SAQA DECISION NUMBER
Registered	2005-02-09	2008-02-09	SAQA 0958/05

UNIT STANDARD 117705: Demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000) applicable to possessing a firearm.



PURPOSE OF THE UNIT STANDARD

This unit standard is for persons who need to demonstrate knowledge of the Firearms Control Act 2000 (Act No 60 of 2000), herein after the Act that is applicable to legally possess a firearm. Persons credited with this unit standard are able to:

- Demonstrate understanding of the statutory duties and obligations of firearm ownership as contained in the Act;
- Demonstrate understanding of the statutory prescriptions applicable to the possession, handling, carrying, storage and use of firearms as prescribed by the Act; and
- Demonstrate understanding of the statutory prescriptions applicable to the possession and storage of ammunition as prescribed by the Act.

UNIT STANDARD RANGE

- In this unit standard, "Act" refers to the Firearms Control Act, 2000 (Act No. 60 of 2000), as amended, as well as related Regulations. The sections of the Act and Regulations relevant to possessing a firearm are listed under Notes.
- Learners assessed against this unit standard should have access to the Act, its amendments and Regulations.

SPECIFIC OUTCOME 1: Demonstrate understanding of the statutory duties and obligations applicable to the firearm ownership as contained in the Act.

ASSESSMENT CRITERIA

1. The term "presumptions relating to failure to report" as detailed in Section 118 of the Act is explained in terms of its implication for the firearm owner.
2. The term "presumption of failure to take reasonable steps" as detailed in Section 119 of the Act is explained in terms of its implication for the firearm owner.
3. The term "presumptions relating to" the possession of firearms and ammunition as detailed in section 117 of the Act is explained in terms of its implication for the firearm owner.
4. The term "offences" is explained as detailed in Section 120 of the Act.
5. The general circumstances under which the registrar may declare a person unfit to possess a firearm are explained as outlined in Section 102 of the Act.
6. The general circumstances under which the court may declare a person unfit to possess a firearm are explained as outlined in Section 103 of the Act.
7. The effect of a declaration of a person as unfit to possess a firearm is explained in terms of Section 104 of the Act.

SPECIFIC OUTCOME 2: Demonstrate understanding of the statutory prescriptions applicable to the possession, handling, carrying, storage and use of firearms as prescribed by the Act.

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ASSESSMENT CRITERIA

1. The statutory prescriptions applicable to the possession of firearms and firearm parts are explained as prescribed by the Act.
2. The statutory prescriptions applicable to the use and handling of firearms are explained as prescribed by the Act.
3. The statutory prescriptions applicable to the carrying of firearms are explained as prescribed by the Act.
4. The statutory prescriptions applicable to the storage of firearms are explained as prescribed by the Act.
5. The statutory prescriptions applicable to the disposal of firearms and firearm parts are explained as prescribed by the Act.

SPECIFIC OUTCOME 3: Demonstrate understanding of the statutory prescriptions applicable to the possession and storage of ammunition as prescribed by the Act.

ASSESSMENT CRITERIA:

1. The statutory prescriptions applicable to the possession of ammunition are explained as prescribed by the Act.
2. The statutory prescriptions applicable to the storage of ammunition are explained as prescribed by the Act.